

controlling that the separate personalities of the [two entities] no longer exist”; and (2) facts showing that “treating the acts as those of the corporation alone will sanction a fraud, promote injustice, or cause an inequitable result.” *Misik v. D’Arco* (2011) 197 Cal.App.4th 1065, 1071-72 (citation and quotations omitted). The Court finds that here, Emshire has done so. See Cross-Complaint at Paragraphs 3, 4, 11, 120, 122. The Demurrer is overruled on that basis. Based upon this ruling, the Court also finds that Causes of Action Five through Twelve have been sufficiently pled and the Demurrer to those causes of action are likewise overruled.

Finally, as to the fraud cause of action, “[t]he elements of fraud are (1) a misrepresentation of a material fact (false representation, concealment, or nondisclosure); (2) knowledge of falsity; (3) intent to defraud; (4) justifiable reliance; and (5) resulting damage.” *Collins v. eMachines* (2011) 202 Cal.App.4th 249, 259. “The facts constituting the fraud, including every element of the cause of action, must be alleged ‘factually and specifically’” to survive demurrer. *Apollo Capital Fund, LLC v. Roth Capital Partners, LLC* (2007) 158 Cal.App.4th 226, 240 [citing *Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 216-17]. Here, the Court finds that fraud has been sufficiently pled. See Cross-Complaint at ¶¶3, 4, 11, 13-15, 19-21, 31, 59-63, and the Demurrer is overruled on this basis.

Cross-Defendant Ceres Environmental Services, Inc. and David Anders McIntyre’s Demurrer to Cross-Complainant Emshire LLC’s Cross-Complaint is overruled in its entirety. Counsel for Emshire shall submit a form of order consistent with this ruling within two weeks and Ceres Environmental Services, Inc. and David Anders McIntyre shall file their Answers to the Cross-Complaint within 20 days’ notice of this order.

Additionally, the Court continues the Case Management Conference on August 26, 2026 to November 4, 2026 at 10:30 a.m. Case Management Conference Statements are to be timely filed and served.

9. 25CV05132 KATHLEEN FRANCES O’LEARY, BY AND THROUGH HER SUCCESSOR-IN-INTEREST, REBEKAH EASTER ET AL V. MURRAY, JASON ET AL

EVENT: Motion to Compel Arbitration and Request to Stay Action

Plaintiffs’ Evidentiary Objections to the Declaration of Alaina T. Dickens are overruled. However, the Court does note that the quoted portions to which Plaintiffs object are not being accepted by the Court as fact in relation to the disputed factual and legal issues of execution and contract formation. Defendants Evidentiary Objections to the Declaration of Kathryn Locatell, M.D. are overruled. The evidence submitted supports a finding that Ms. O’Leary lacked capacity to understand and appreciate the Arbitration Agreement at the time it was signed [See Declaration of Kathryn Locatell, MD at ¶¶6, 8-12, 14-28, 29-34]. Thus, the Court finds that Defendants have failed to satisfy their burden of establishing the existence of a valid Arbitration Agreement. The Court thus concludes that there is no valid and enforceable agreement to arbitrate and the Motion is denied.

10. 26CV00544 JOHL, AMANDEEP ET AL v. MUBARAKA, ADEL ET AL

EVENT: Motion to Consolidate Cases

“In unlawful detainer proceedings, ordinarily the only triable issue is the right to possession of the disputed premises, along with incidental damages,” and “[o]rdinarily, issues respecting the title to the property cannot be adjudicated in an unlawful detainer action.” *Martin-Bragg v. Moore* (2013) 219 Cal.App.4th 367, 385. The narrow power to consolidate exists because “a successful claim of title by the tenant would defeat the landlord’s right to possession.” *Ibid.* Here, Plaintiffs do not claim to own the premises. Rather, the Complaint acknowledges that the Defendants own the property. [See Complaint at ¶28; Exh. 7]. The parties disagree only about how long Plaintiffs’ lease runs. A successful claim by Plaintiffs would not defeat the Defendants’ title — which should more properly be litigated in the unlawful detainer action. Issues of whether the lease expired, and whether an option to extend was validly exercised, are precisely the questions an unlawful detainer court resolves in summarily deciding the right to possession. Therefore, consolidation pursuant to *Code of Civil Procedure* §1048 is inappropriate here and the Motion is denied.

11. 26CV00555 YOUNG, CASEY v. KOMAS, TANYA

EVENT: Defendant’s Motion to Set Aside Entry of Default

The Court finds that Defendant Tanya Komas’ (“Defendant” herein) has satisfied the statutory requirements for relief under both the mandatory and discretionary relief provisions of *Code of Civil Procedure* §473(b) and Defendant’s Motion to Set Aside Entry of Default is granted. The Default entered on May 28, 2026 is set aside and Defendants shall file and serve her responsive pleading within 10 days’ from the date of this hearing. Pursuant to *Code of Civil Procedure* §473(b), the Court awards to Plaintiff Casey Young reasonable compensatory legal fees and costs of \$3,000, which are to be paid by Defendant’s counsel, Joh R. Garner, of Garner & Associates LLP, within 30 days’ from the date of this hearing. Counsel for the Defendant shall prepare and submit a form of order consistent with this ruling within two weeks.

12. 26CV01617 BEAR RIVER SUPPLY INC v. SHARMA, AMEET

EVENT: Defendant’s Motion for Transfer of Venue

The requested change of venue is not contested, Defendant’s Motion for Transfer of Venue is granted, and this matter is transferred to the Superior Court of California, County of Solano. Pursuant to *Code of Civil Procedure* §399, the transfer fees and costs are to be paid by Plaintiff. In regard to attorneys’ fees, the Court in its discretion declines to award any such fees. The Court will utilize the form of order submitted by Defendant but will strike Paragraph 2. The Case Management Conference on November 4, 2026 is vacated and the matter is set for a Status Hearing on October 7, 2026 at 10:30 a.m. for status of transfer.